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General Council

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WORK PROGRAMME ON ELECTRONIC-COMMERCE

COMMUNICATION FROM CHINA

The following communication, dated 10 November 2017, is being circulated at the request of the delegation of China.

DRAFT MINISTERIAL DECISION ON ELECTRONIC COMMERCE

The Ministerial Conference,

Recalling the "Work Programme on Electronic Commerce" adopted on 25 September 1998 (WT/L/274), and reaffirming subsequent Ministerial Declarations and Decisions on the Work Programme;

Taking note of the valuable discussions on electronic commerce under the auspices of the General Council and its relevant subsidiary bodies, and the seminars held by MIKTA, FED and the African Group since our last session;

Recognizing the importance of deepening such discussions under the WTO framework for a better understanding of the opportunities and challenges incurred from electronic commerce for the trade growth and economic progress of Members at different development stages;

Decides:

To continue with the positive work under the Work Programme on Electronic Commerce since our last session, based on its existing mandate and guidelines and on the basis of proposals submitted by Members in the respective WTO bodies.

To reiterate the central role of the General Council under the Work Programme on electronic commerce, and considering the cross-cutting nature of E-commerce, to explore appropriate mechanisms for necessary focused horizontal discussions in parallel with the respective discussions under the General Council and its relevant subsidiary bodies, including to reinvigorate the Dedicated Discussion of the General Council or at a body to be agreed upon by all Members.

To instruct the General Council at its first meeting in 2018 to appoint the Chair of the Dedicated Discussion, and that a work plan be agreed upon at the first meeting of the Dedicated Discussion.

To instruct the Dedicated Discussion to take up trade-related electronic commerce elements acceptable to Members, including but not limited to facilitating cross-border e-commerce; promoting paperless trading; transparency; as well as development and cooperation.

To instruct the General Council to keep a standing item on its agenda and continue to hold periodic reviews in its sessions of July and December 2018 and July 2019, based on the reports submitted by the WTO bodies entrusted with the implementation of the Work Programme and Dedicated Discussion Chair of the General Council, to assess its progress and consider any recommendations

on possible measures related to electronic commerce in the next session of the Ministerial Conference.

To instruct the General Council to emphasize the development dimension in the Work Programme, particularly through the CTD, and take forward the issues emerging in the discussions and the evolving application of e-commerce to enhance economic/development opportunities, with special consideration of the situation in developing countries, particularly in least-developed country Members and least connected countries.

To continue to examine opportunities and challenges for access to electronic commerce by micro, small and medium sized enterprises, including small producers and suppliers, and conduct information exchange, joint study, promotion events and training, including the sharing of experience in helping MSMEs, economically under-developed areas and vulnerable groups to participate in e-commerce.

That Members will maintain the current practice of not imposing customs duties on electronic transmissions until our next session, which we have decided to hold in 2019.
